

Vijai Pal v. State of U.P.

Allahabad High Court · Division Bench · 20 September 2022 · WRIT - C No. 27789 of 2022 · **Writ disposed; clause 6.5 representation to Executive Engineer directed.**

HEADNOTE

Electricity grievances raised in writ are to be pursued by representation to the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005. Without examining merits, the High Court disposed of the petition, directed a clause 6.5 representation within two weeks, required an expeditious decision preferably within two months, and stayed coercive measures for that period, subject to the petitioner filing the objection in time.

FACTUAL SUMMARY

Vijai Pal invoked the writ jurisdiction of the Allahabad High Court against the State of Uttar Pradesh and others, including the Executive Engineer of Vidyut Vitran Ltd. at Karhal Road, Mainpuri. The petition raised electricity-related grievances against the distribution licensee, in a setting that contemplated coercive recovery if no objection was filed. The Division Bench did not record the particulars of the underlying bill, demand, or connection dispute, and expressly declined to enter the merits of the petitioner's claim.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

clause-6.5-representation

HOLDING

For grievances raised in the writ, the petitioner's remedy is to approach the Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005. Without entering the merits, the writ is disposed of with a direction that the petitioner file a representation before the Executive Engineer, Vidyut Vitran Ltd., Karhal Road, Mainpuri, under clause 6.5 within two weeks; the competent authority shall decide it expeditiously in accordance with law, preferably within two months. No coercive measure shall be taken for two months or until that decision. Default in filing the objection within time leaves the respondent free to proceed in accordance with law. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Division Bench held that the writ petitioner's electricity grievances were to be pursued under clause 6.5 rather than on the writ, and disposed of the petition on that footing without a merits decision. ¶ 1

6.5-representation-as-appropriate-remedy The Court directed the petitioner to file a clause 6.5 representation before the Executive Engineer within two weeks and required an expeditious decision in accordance with law, preferably within two months. ¶ 1

clause-6.5-representation-executive-engineer The designated forum was the Executive Engineer, Vidyut Vitran Ltd., Karhal Road, Mainpuri, with a time-bound stay of coercive measures pending that representation. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S ELECTRICITY GRIEVANCES

The Court expressly declined to enter the merits of the claim. ¶ 1

